Ritu Singal vs Bureau Of Immigration & Ors on 22 May, 2023

Author: Prathiba M. Singh

Bench: Prathiba M. Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(C) 17646/2022 & C
RITU SINGAL

BUREAU OF IMMIGRATION & ORS.
Through: Mr. Anurag
Mr. Shrira
Kait & Mr.
SFIO with
Agnihotri
8860658903
Mr. Anupam
along with
Prkarsh Ai
Mr. Ripuda
CORAM:
JUSTICE PRATHIBA M. SINGH
ORDER

% 22.05.2023

1. This hearing has been done through hybrid mode. CM APPL.27294/2023 (for modification)

2. This is an application seeking modification of the order dated 15th May, 2023 by which Rs.5 crores was directed to be given as security by the Petitioner to the satisfaction of the Registrar General.

3. Vide the said order it was directed as follows:

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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 19:43:44 "8. The Court has heard the ld. Counsels for the

> parties. Admittedly, the company M/s. Bhushan Steel Limited underwent insolvency proceedings and is now under the control of a new management. Considering the reasons for travel especially insofar as the graduation ceremony in London is concerned, the same has been duly verified by the ED. The function in Singapore is relating to a close family of the Petitioner.

The Petitioner also has close family ties in India. Accordingly, this Court is inclined to grant permission to travel abroad to the Petitioner, as per the aforementioned itinerary, subject to the following conditions:

> i) The Petitioner shall place on record the list of all her movable and immovable assets within a period of three days.
>
> ii) The Petitioner shall furnish security for a sum of Rs.5 crores in the form of an FDR to the satisfaction of the worthy Registrar General of this Court.
>
> iii) The Petitioner shall furnish a detailed affidavit disclosing her detailed itinerary, including her stay at various stations abroad, telephone numbers and residential/hotel addresses. The Petitioner shall also file an undertaking that she shall adhere to the itinerary mentioned in the affidavit and not visit any other stations.
>
> iv) The Petitioner will also provide the contact numbers she shall use during the period she stays abroad, and at least one of the said contact numbers will be kept operational at all times, subject to all exceptions, including the period she is on board the aircraft.
>
> v) The Petitioner shall intimate the ED before leaving and within 72 hours of her return from abroad.
>
> vi) The Petitioner shall file a self-attested copy of her passport along with a copy of her visa in the Court on her return to India.

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vii) The permission to travel abroad given in this order shall be subject to other applicable conditions and will not be deemed as a direction to any other authority.

viii) In case any of the above conditions are violated, the security will be forfeited to the State.

9. The application for permission to travel abroad is disposed of in the above terms."

4. In terms of the order passed on the last date of hearing, it was further clarified as follows:

> "13. After the order was dictated, Mr. Ahluwalia, ld. CGSC mentioned this matter to clarify that the present order would apply only qua the LOC issued at the instance of the ED and not the LOC at the instance of the SFIO, as the matter in respect of the SFIO is pending before the ld. Trial Court where the Court has directed that permission would have to be sought by the Petitioner for the purposes of travel.
>
> 14. The Court had directed Mr. Ahluwalia, ld. CGSC to give an intimation to the ld. Counsel for the Petitioner so that the said aspect could be clarified. Ld. CGSC submits that his office has given intimation to counsel for the Petitioner. However, none as appeared for the Petitioners, despite intimation.
>
> 15. Accordingly, it is clarified that insofar as the SFIO's investigation is concerned, the present order would not be applicable. The Petitioner is free to seek liberty qua the same from the concerned Trial Court."

5. In the present application, it is prayed that the security may be permitted to be furnished by the parents of the Petitioner.

6. Mr. Hariharan, ld. Senior Counsel for the Petitioner submits that insofar as the bail order passed by the Respondent No. 3-Serious Fraud Investigating Office ('SFIO') is concerned, the Petitioner has approached the Trial Court and has been given permission to travel abroad.

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7. In terms of the order dated 15th May 2023, Mr. Anurag Ahluwalia, ld. CGSC clarifies that no LOC has been issued at the instance of SFIO, but conditions were imposed upon the Petitioner in the bail order, which was granted by the Trial Court.

8. Heard. This Court notices that on the last date i.e. on 15th May, 2023, after the initial order was passed, Mr. Ahluwalia, ld. CGSC had mentioned the matter, and sought clarification insofar as the Trial Court's bail order is concerned.

9. However, despite the Court repeated directions that the Petitioner's counsel ought to appear, no appearance was made on the last date of hearing for recording of the said clarification. Consequently, the Court proceeded to clarify the order permitting the Petitioner to seek liberty from the Trial Court, which has now been sought by the Petitioner.

10. The Court disapproves the conduct of the ld. Counsel for the Petitioner on the previous date of hearing, of not appearing despite repeated intimation by the ld. CGSC who had made repeated calls

to the counsel, on directions of the Court.

11. Insofar as the modification is concerned, since the same is merely to permit the parents to furnish the security, it is directed that the security of the sum of Rs.5 crores be accepted on behalf of the Petitioner, through her parents in the form of an FDR.

12. Insofar as the conduct as recorded in the order dated 15th May, 2023 is concerned, Rs.1 lakh is directed to be paid as costs by the Petitioners to Mr. Sharma, ld. Counsel for the Enforcement Directorate and Mr. Anurag Ahluwalia, ld. CGSC, and Rs.50,000/- each which shall be distributed to their assisting counsels. The costs shall be paid within 2 days.

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13. Mr. Hariharan submits that the Counsel for the Petitioner tenders an unconditional apology in the matter.

14. The application is disposed of.

W.P.(C) 17646/2022

15. List before the Registrar General on 23rd May, 2023.

PRATHIBA M. SINGH, J.

MAY 22, 2023/dk/dn This is a digitally signed order.

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